

Karim Baks v. State of U.P.

Allahabad High Court · Division Bench · 12 May 2022 · Writ-C No. 34983 of 2021 · Writ-C No. 34983 of 2021 · **Writ disposed by consent; petitioner relegated to clause 6.8 objection.**

HEADNOTE

On a challenge to a recovery notice dated 4 June 2021 and a recovery certificate dated 29 September 2021 for Rs.47,780, issued without opportunity to object under paragraph 6.8 of the Electricity Supply Code, 2005, the Allahabad High Court disposed of the writ by consent. The consumer was given three weeks to file a clause 6.8 objection; if filed, the licensee was to decide it by a speaking and reasoned order, preferably within four weeks, after hearing. No opinion was expressed on merits.

FACTUAL SUMMARY

Karim Baks challenged a recovery notice dated 4 June 2021 and a subsequent recovery certificate dated 29 September 2021 for Rs.47,780 issued against him by the electricity licensee. He alleged that the recovery was initiated without affording him any opportunity of hearing to file an objection under paragraph 6.8 of the Electricity Supply Code, 2005. Counsel for the licensee stated that the petitioner could still submit that objection, which would be decided in accordance with law within a time-bound period. The writ was then disposed of by consent.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause 6.8 objection as alternate remedy to writ against recovery

HOLDING

By consent, a writ challenging recovery issued without a clause 6.8 hearing may be disposed of by granting the consumer liberty to file an objection under paragraph 6.8 of the Electricity Supply Code, 2005 within a fixed time, to be decided by a speaking and reasoned order after reasonable opportunity of hearing, without any opinion on merits. ¶ 5-6

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court did not quash the recovery notice or certificate; it relegated the petitioner to a time-bound clause 6.8 objection, to be decided by a speaking order after hearing. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY NOTICE DATED 4.6.2021 AND RECOVERY CERTIFICATE DATED 29.9.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 6